

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: May 19, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	23CV416606	Zhao Zheng vs Ming Lin	Demurrer/ Motion to Strike On August 26, 2025, Plaintiff/cross-defendant Zhao Zheng filed a demurrer or motion to strike the defendant Ming Lin'/cross-complainant's cross-complaint. The motion was accompanied by a proof of service indicating electronic service on August 19, 2025. No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 6, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)). Moving party meets its burden. The demurrer to the cross- complaint is SUSTAINED.

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LAW AND MOTION TENTATIVE RULINGS

LINE 2	24CV442138	Gary Cayton et al vs El Camino Hospital et al	Motion to Strike Scroll down to Line 2 for Tentative Ruling.
LINES 3-4	25CV467301	Fernando Hernandez et al vs Peter Singler et al	Demurrer (Line #4) & Motion for Sanctions (Line #4) Scroll down to Lines 3-4 for Tentative Ruling.
LINES 5	23CV427732	Bradley Land vs Apple, Inc., a Delaware Corp.	Motion for Summary Judgment/Adjudication Scroll down to Line 5 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

<u>LINE 6</u>	24CV449358	Honglin Chen et al vs Xiaoli Song	Motion to Compel Further Responses to Form Interrogatories, Special Interrogatories, Request for Production, Set One; and Motion for Sanctions This case stems from Defendant Song’s testimony in a prior action brought by Heng Zhang against Plaintiff Brendon Farrell that resulted in a jury awarding Heng Zhang in excess of \$9 million dollars against Plaintiff Farrell. Before the court is Plaintiffs Honglin Chen, Brendon Farrell, and Katherine Chen’s (collectively “Plaintiffs”) motion to compel form interrogatoires (“FROG”), set one; special interrogatories (“SPROG”), set one; and request for production of documents (“RPD”), set one. On July 15, 2025, Plaintiffs filed this motion to compel that was accompanied by a proof of service indicating electronic service on July 14, 2025. In total, Plaintiffs seek further responses to 87 discovery requests: FROG no. 2.2, 2.5, 2.6, 2.7, 2.11, 12.1, 12.2, 12.3, 12.6, 15.1, 17.1, 50.1, 50.4, 50.5, and 50.6; SPROG 1-35; and RPD 1-37. Defendant Xiaoli Song opposes the motion and filed opposition papers on May 6, 2026. Plaintiffs filed a reply brief with declaration in support on May 14, 2026. The Court has carefully reviewed the following moving papers: Plaintiffs’ notice of motion to compel FROG, SPROG, and RPD, set one (totaling 3 pages); Plaintiffs’ memorandum of points and authorities (totaling 11 pages); Declaration of Bredon Farrell in support of Plaintiffs’ motion (totaling 125 pages); Declaration of Honglin Chen in support of Plaintiffs’ motion (totaling 96 pages); Declaration of Katherine Chen in support of Plaintiffs’ motion (totaling 120 pages); Plaintiffs’ separate statement (totaling 43 pages); proof of service (totaling 3 pages); Defendant Song opposition papers (totaling 6 pages); Declaration of Steve Leydiker in support of the defendant’s opposition and attached Exhibits 1-2 (totaling 52 pages); Defendant’s separate statements (totaling 5 pages); Plaintiffs’
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